

RESOLUTION OF SANCTIONING PROCEDURE

From the actions carried out ex officio by the Spanish Agency for Data Protection against the entity, TECHPUMP SOLUTIONS S.L. (TECHPUMP), CIF: B33950338, owner of the websites: ***URL.1; ***URL.2, ***URL.3, ***URL.4; ***URL.5, for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI), and considering the following:

BACKGROUND

FIRST: On 22/12/23, the Director of the Spanish Agency for Data Protection agreed to open preliminary investigation proceedings against the entity, TECHPUMP SOLUTIONS S.L., based on the investigative powers that the supervisory authority may exercise for this purpose, established in paragraph 1 of Article 58 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and in relation to the "Cookie Policy" followed on the aforementioned websites.

SECOND: On 27/12/23, the Inspection Subdirectorate of the Spanish Agency for Data Protection carried out the following diligence regarding the "Cookie Policy" of the aforementioned websites, obtained through the "inspect → application" tool of the Google Chrome browser and after clearing the browser's cache and cookies, and after forcing the browser to download the latest version of the webpage hosted on the remote server:

a).- Regarding the installation of cookies without prior consent from the user:

In the checks carried out on the websites in question, it was verified that upon entering them for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on them, the following own cookies were used:

- On the website ***URL.2, an own cookie, "OptanonConsentimiento", was used, detected as technical in nature.

- On the website ***URL.1, an own cookie "OptanonConsentimiento" was used, detected as technical in nature, along with the own cookies, "usuario_país"; "stop_redirect"; "país" and "redirect_es" whose purpose could not be identified, although according to the information provided in the "Cookie Policy" of the website, these cookies were "necessary for the site to function..."

- On the website ***URL.4, an own cookie: "stop_redirect" was used, whose purpose could not be identified, although according to the information provided in the "Cookie Policy" of the website, it was a necessary cookie used to redirect the user to the area of the country of origin.

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- When attempting to enter the websites ***URL.3 and ***URL.5, it was observed that the user was redirected to the website ***URL.6.

b).- Regarding consent for the installation of cookies on the terminal equipment:

It was verified that if the user did not provide consent in the cookie control panel for the websites to use cookies that were not technical in nature, through the "reject all" option, and began browsing any of them, they started to use two third-party cookies, "__uvt" and "__upt", whose domain belongs to ".magsrv.com".

The domain "magsrv.com" is classified on the internet as a distributor of "adware", which is software that displays unwanted advertisements on the user's device, which can interrupt the user experience, slow down systems, and compromise privacy by collecting data for targeted advertising.

It was detected that the purpose of the cookie "__uvt" was to perform statistical operations on user preferences to offer targeted advertising, but regarding the cookie "__upt", its purpose could not be identified. There was also no information about it in the "Cookie Policy" of the investigated websites.

c).- Regarding the cookie information banner present in the first layer and in the "Cookie Policy":

The cookie information banner present in the first layer of the websites in question informed that they used own and third-party cookies and informed how the user could accept, configure, or reject the use of cookies.

It also indicated that the purposes for which the cookies would be used were "for analytical purposes and to display personalized content based on a profile created from browsing habits (...)", However, it was verified that of the two third-party cookies installed when starting web browsing ("__utv" and "__upt"), there was no information about them in the "Cookie Policy".

d).- Regarding the possibility of withdrawing consent once granted.

It was verified that if the user had granted consent for the use of cookies that were not technical in nature through the option available in the initial information banner or through consent granted in the control panel and wished to modify it later, there was indeed the possibility to access the control panel again through the link available in the "Cookie Policy" of the websites.

However, if the user's desire was now to reject all cookies by clicking on the "Reject all" option or moving the sliders of the cookie groups to the "OFF" position and clicking on "Confirm my preferences" in the control panel, it was verified that the websites continued to use the installed third-party cookies. That is, it did not eliminate the cookies in question, so this tool, present on the websites, was not operational.

C/ Jorge Juan, 6
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28001 – Madrid
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3/31

THIRD: On 29/12/23, Mr. A.A.A. submitted a complaint to the Spanish Agency for Data Protection. The complaint was directed against the entity TECHPUMP SOLUTIONS S.L. with CIF: B33950338, owner of the aforementioned websites, for the alleged violation of the LSSI (Law on Information Society Services) and in his submission stated that after being informed that an age verification system had been installed for the indicated pornographic pages, he had accessed some of them to see how they were configured, given that almost two years had passed since the initiation of the procedure that led to the previous sanctioning file (PS/00555/2021), opened in this Agency, verifying that the provisions established in the regulation regarding cookie policy were still being violated.

FOURTH: On 28/02/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the entity TECHPUMP SOLUTIONS S.L. with CIF: B33950338, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged violation of Article 22.2 of the LSSI, regarding the "Cookie Policy" of the websites owned by it.

In the opening agreement, it was determined that the possible violations of the provisions established in Article 22.2 of the LSSI were due to the use of third-party cookies without the prior consent of the user and the impossibility of rejecting them; the lack of information in the "Cookie Policy" regarding the purpose of these cookies and the impossibility of withdrawing consent if it had been previously granted.

In the opening agreement, it was determined that the sanction that could correspond, considering the existing evidence at the time of the opening and without prejudice to what might result from the instruction, would amount to 30,000 euros for the deficiencies detected in the "Cookie Policy" of the website ***URL.2, 30,000 euros for the deficiencies detected in the "Cookie Policy" of the website ***URL.1, and 30,000 euros for the deficiencies detected in the "Cookie Policy" of the website ***URL.4.

FIFTH: Once the initiation agreement was notified in accordance with the rules established in the LPACAP, the accused party submitted a written statement of allegations on 25/03/24, based on the following arguments:

- The violation of the principle of "non bis in idem," arguing that the facts addressed in the present file (PS/524/2023) have subjective, factual, and causal identity with those already analyzed in file PS/555/2021.
- The contentious-administrative prejudiciality due to the existence of a prejudicial question, with the

added circumstance that without having been procedurally answered, this new sanctioning file is opened, with identical characteristics and on the same matter as the previous ones.

- That, in relation to the aforementioned contentious-administrative procedure, as well as concerning file PS/00523/2023, a document was submitted regarding the review of Techpump's cookies, an external audit of measures implemented on the company's adult content websites (N REF. 21B 7), where all the indicated issues have been resolved and corrected.

- The disproportion in relation to the files initiated by the AEPD concerning other competing companies in adult content.

SIXTH: On 26/03/24, a new written statement of allegations was received in this Agency, in which the following is stated:

As a complement to the document submitted this morning, the present one prepared by the technical department of the company is added regarding the reasons for which this file has been initiated in view of the following:

Summary of cookies __uvt and __upt

1. Cookies Involved: The company ExoClick manages two specific cookies, named __uvt and __upt.

2. Status in December: During December, when the data protection agency evaluated the cookies, there were no measures implemented to block these specific cookies as ExoClick did not have the option to block them.

3. Solution in February: In February, ExoClick presented a solution that allows blocking the cookies __uvt and __upt when users choose to block all cookies on the site.

4. Partial Implementation: This solution has only been implemented on two websites, XXXXXXXX and XXXXXXXX. Implementation on XXXXXXXX is still pending.

5. Impact of Cookie Blocking: When these cookies are blocked, it is observed that no advertisements appear on the websites.

6. Pending Solution from ExoClick: ExoClick still needs to develop a solution that allows displaying advertisements on the websites even when these cookies are blocked.

It should be noted: To address this issue, ExoClick introduced a solution in February that allows users to block these cookies. However, this solution has been implemented in a limited manner, being active only on two of its main websites, XXXXXXXX and XXXXXXXX, while sites like XXXXXXXX are still pending implementation.

It is important to highlight that blocking these cookies has a significant impact on the display of advertisements on the websites. When a user opts to block the cookies __uvt and __upt, no type of advertisement is shown. This situation poses a challenge for ExoClick, which still needs to find a way to display advertisements without the use of these cookies. For all the above, I REQUEST that it be considered duly completed in time and form.

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28001 – Madrid

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5/31

legal the requirement made in File 00524/2023, proceeding to the filing of the present proceedings without further processing.

SEVENTH: On 22/05/24, a resolution proposal was made in the sense that the Director of the AEPD should sanction the complained party for the violation of Article 22.2 of the LSSI, regarding the "Cookie Policy" of the websites in question, with 30,000 euros (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.2, 30,000 euros (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.1, and 30,000 euros (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.4.

The resolution proposal was made in accordance with the deficiencies detected in the "Cookie Policy" of the websites in question, which were, essentially, the following:

- Although the user did not give consent to use cookies that were not of a technical nature, and began browsing any of the indicated websites, they started to use two third-party cookies: "__uvt" and "__upt", whose domain belongs to ".magsrv.com". It could be verified that the cookie "__uvt" was used to

perform statistical operations on user preferences and to display targeted advertising, while the purpose of the cookie “__upt” could not be identified. There was also no information about them in the "Cookie Policy" of the websites.

- Regarding the possibility of modifying consent, although there was the possibility of accessing the control panel again through the existing link in the "Cookie Policy" of the websites and withdrawing the consent given, the websites continued to use the installed third-party cookies. That is, the installed cookies were not deleted, so this tool, present on the websites, was not operational.

EIGHTH: On 13/06/24, the entity TECHPUMP submitted a written statement of allegations to the resolution proposal in which it states the following:

Note: Only sections C) and D) of the written allegations are transcribed, as they correspond to the allegations presented regarding the events being addressed in this file, PS/00524/2023, omitting the allegations presented in sections A) and B) for procedural economy, as they refer to the events dealt with in files PS/00555/2021 and PS/00523/2023 respectively, which will be resolved, if applicable, within those files:

“PRELIMINARY ISSUE: This representation makes a joint allegation regarding the various sanctioning procedures opened by the SPANISH AGENCY FOR DATA PROTECTION against TECHPUMP as a consequence of the existence of various sanctioning files related to the current regulations on personal data protection.

Through this written statement of allegations, the requirement made in Procedure PS524/2023 is also being fulfilled, in a timely and legally appropriate manner, derived from the Resolution Proposal of the aforementioned Sanctioning Procedure dated May 22, 2024.

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6/31

This written statement of allegations maintains references that reproduce from previous responses and includes updates and new allegations in relation to the same. It also contains references (REF) that assist with the traceability of documents according to the internal system used for continuous improvement in the protection of personal data.

Furthermore, whenever we mention Techpump, we refer to Techpump Solutions, S.L. And when referring to Techpump's websites, we will mostly refer to the pages with exclusive adult content, which does not mean that Techpump has other websites, such as www.padresprotegen.com, which is an educational website for parents and guardians specifically to protect minors.

A). REGARDING PS 55/2021: (...)

B). PROCEDURE PS 523/2023: (...)

C) FILE 524/2023

Finally, my client was initiated into Procedure PS524/2023, with the following allegations made in this regard.

FIRST. VIOLATION OF THE NON BIS IN IDEM PRINCIPLE.

Firstly, this party reiterated the violation of the non bis in idem principle, as the facts being judged in file 00555/2021 have, as will be seen later, a subjective, factual, and causal identity with those analyzed in the present file 524/2023, with no difference whatsoever between both sanctioning administrative procedures.

Moreover, there is another sanctioning file that was initiated with reference 523/2023, to which a response was given, and even supplementary writings were submitted regarding the different measures that were adopted both at the presentation of the writing and subsequently.

We understood from all this that the AEPD was initiating different files, which are also very repetitive over time, and which deal with the same matters that have already been resolved. All this without responding to the writings that TECHPUMP SOLUTIONS S.L. had been presenting, demonstrating an absolute and sincere willingness to collaborate on the part of this company with the Agency, thereby

generating a clear state of defenselessness.

Furthermore, all this occurred when through media, TECHPUMP SOLUTIONS S.L. showed an absolute willingness to collaborate with the AEPD, and when a meeting was even requested, which was inexplicably denied by this authority, given that the purpose was to address this socially important issue in the most constructive manner possible, rather than the sanctioning procedures initiated, which in practice will not solve the problems that my client is making every effort to resolve.

C/ Jorge Juan, 6

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7/31

constructive, and assumed both by the relevant regulator and by my own client.

Regarding the qualification and application of the concept of "non bis in idem" to the present file, we hereby reproduce everything that has already been indicated in the response to the initiation of file PS 253/2023 concerning the scope of the subjective, factual, and causal identities of the invoked principle, as well as the legal basis of legality, typicity, and proportionality.

With all of this, the sanction sought in this new procedure has the same legal cause as the previous ones, and therefore my client is being sanctioned three times for the same facts, thereby violating the rights that should protect them against irregular and/or excessive actions by the Administration itself, as is the case here, especially considering that the actions taken based on file 00555/2021 were expressly challenged before Section 1 of the Administrative Litigation Chamber of the National Court, and consequently, at this moment, they did not have the character of finality, having also submitted a claim that was accepted by an order dated February 13, 2024, which is being processed in Ordinary Procedure number 1794/2022, as indicated, before Section One of the Administrative Litigation Chamber of the National Court, and with the developments known to the parties including the statement made by the State Attorney.

This once again highlights the breach of the aforementioned principle of non bis in idem in this file, with the consequent violation of Article 25 of the Spanish Constitution, which expressly recognizes the principle of legality in the actions of the Administration.

In this regard, the doctrine of the European Court of Human Rights has been violated, for example, in Judgment 15963/90, of October 23, 1995, Case Gradingner v. Austria [ECLI: CE:

ECHR:1995:1023JUD001596390], where the ECHR considers that the fine imposed by the administrative authority after a conviction for the same facts constitutes a genuine penalty, which violates the principle of non bis in idem. There has been a violation of Article 4 of Protocol 7 of the European Convention on Human Rights.

Furthermore, it should be noted Judgment 38237/1997, of June 6, 2002, Case Sailer v. Austria [ECLI: CE: ECHR:2002:0606JUD003823797], in which the ECHR considers that Article 4 of Protocol No. 7 of the European Convention on Human Rights must be understood in the sense that it prohibits the initiation of a process or the prosecution of a second offense, as long as it derives from identical or substantially similar facts. This provision contains a guarantee against prosecution in a new procedure, as is improperly occurring in the present case.

On the internal level, among many other judgments of the Spanish Constitutional Court, reference is made to STC 177/1999, of October 11, Amparo Appeal 3657-94. Promoted against the judgments of the Audiencia.

8/31

Provincial and Criminal Court No. 22 of Barcelona that convicted the appellant as the author of an offense against the environment. Violation of the right to legal certainty in criminal law. The aforementioned High Court expresses the doctrine regarding the principle of non bis in idem, indicating that, based on the above, it should be noted that we are not in a situation where the courts of the criminal jurisdiction appreciate a diversity of conduct or facts, or that the legal basis or legal good protected by the administrative norm is not identical to that preserved by the applicable criminal type, and, in the absence of such identity, they consider the prohibition of bis in idem or duality of punitive reproach inapplicable. Rather, we are faced with a case that presents the peculiarity that the judicial

bodies start, as an initial premise, from the concurrence of the aforementioned identifying elements of the principle alleged to be violated, namely, the triple identity of subject, fact, and basis. Nevertheless, they do not conclude in an acquittal solely for the reason, explicitly stated in the convicting judgments, of the rule or criterion of the prevalence of criminal jurisdiction over the administrative sanctioning power, understanding that this, due to its subordinate rank, must yield in its exercise or manifestation before the *ius puniendi* of the former, which leads to criminal incrimination and the consequent convicting judgment, estimating that the conduct of the accused constitutes a crime, despite the fact that the same conduct had previously been sanctioned by the Administration.

It can therefore be asserted that the challenged judgments confirm the material violation of *non bis in idem*, but they deem the subsequent imposition of a penalty unavoidable in application of the indicated rule of prevalence.

The principle of *non bis in idem* is configured as a fundamental right of the citizen against the decision of a public authority to punish them for acts that have already been subject to sanction, as a consequence of the previous exercise of the State's *ius puniendi*. It is essentially aimed not only at preventing the proscribed result of double incrimination and punishment for the same acts but also at avoiding the occurrence of potentially contradictory pronouncements, in the event of allowing the parallel or simultaneous prosecution of two procedures—penal and administrative sanctioning—attributed to authorities of different orders. To prevent such outcomes, the priority attribution to the criminal jurisdictional bodies for the adjudication of facts that appear, *prima facie*, as crimes or offenses is directed.

We must conclude that, once a sanction has been imposed, whether of a penal or administrative nature, it is not permissible, without violating the aforementioned fundamental right, to superimpose or add another distinct one, provided that the oft-repeated identities of subject, facts, and basis concur. This essential core must be respected within the scope of the punitive power generically considered, to avoid a single conduct receiving double reproach. All of this leads to the conclusion that, as occurs in the present case, a double sanction is being imposed in the administrative sanctioning order, which presents and exhibits the same characteristics as the criminal jurisdiction itself, for analogous facts to those already sanctioned.

C/ Jorge Juan, 6
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28001 – Madrid
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9/31

previously, existing between both procedures the corresponding subjective, factual, and causal identities, which precisely determines the application of the principle “*non bis in idem*” now invoked, as well as the same legal basis regarding legality, typicity, and the requirement of proportionality that must exist in the use of sanctioning administrative powers.

SECOND. CONTINGENT ADMINISTRATIVE PREJUDICIALITY.

In order to avoid argumentative reiterations, it is appropriate to consider the statements made in file 523/2023 as reproduced, to which it is appropriate to refer for the purpose of taking into account the existence of a prejudicial issue of a contentious-administrative nature, with identical characteristics and on the same matter as the previous ones.

THIRD. IN A SUBSIDIARY MANNER TO THE PREVIOUS SECTIONS AND IN RELATION TO THE CONSIDERATIONS MADE BY THE AEPD.

It should be indicated that, in relation to the aforementioned procedure before the Administrative Contentious Chamber, as well as in connection with the previous file 523/2023, the DOCUMENT OF REVIEW OF TECHPUMP COOKIES. EXTERNAL AUDIT OF MEASURES IMPLEMENTED ON THE COMPANY'S ADULT CONTENT WEBSITES (REF. N 21B 7) was submitted, and for procedural economy, the documents are not attached as they have been provided in the aforementioned procedures, to which it is appropriate to refer for the purpose of substantiating this written statement of allegations, as the typical case of substantiation by reference, for the purposes of motivating the present allegations.

We understand that all those issues indicated by the regulator have been openly resolved and rectified by my represented party, and consequently, therefore, the initiation of a new sanctioning file is not appropriate, without prejudice to the fact that an inspection was carried out in this new procedure. We conclude that this cookie was indeed temporarily placed due to a technical error by the advertising provider Exoclick without being active at the time the external audit was conducted (January 2024), and without being active at present. Therefore, it was merely a temporary error within a technical process.

For these purposes, the advertising provider was requested to issue a report, which we are pending to receive, and currently, advertising in case of consenting to cookies is managed independently of the cookies, which implies total compliance by my represented party.

And not only that, but also the websites of Techpump Solutions S.L. related to adult content, such as those that have been opened in the file, are in a clear process of error mitigation in the aforementioned transition to paid sites, as well as the possible establishment of a payment system also in case cookies are not accepted, which would imply user identification of the websites, with all that this entails.

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28001 – Madrid

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10/31

in matters of adult privacy but also establishing a better control system to prevent access by minors, which, as we have already indicated and documented, we have no evidence of occurring on the adult websites of Techpump Solutions, S.L. Neither from the previously mentioned access statistics nor from any complaints through the DPO or compliance systems. An EXTERNAL AUDIT OF MEASURES IMPLEMENTED ON THE ADULT CONTENT WEBSITES OF THE COMPANY was submitted, conducted by TECHPUMP SOLUTIONS, S.L., dated January 24, 2024. (N REF. 21 B 7).

In addition to the above, and due to its close relationship, and having also been submitted in the previous sanctioning files, a complete review of the onboarding procedure for the protection of minors was carried out, positioning TECHPUMP SOLUTIONS S.L. as the currently safest site in its operational sector, that is, in this aspect known and within open adult content pages. It was submitted as DOCUMENT NUMBER 2, DOCUMENT OF REVIEW OF THE ONBOARDING PROCESS OF TECHPUMP AND MECHANISM TO PREVENT MINOR ACCESS. EXTERNAL AUDIT OF MEASURES IMPLEMENTED ON THE ADULT CONTENT WEBSITES OF THE COMPANY. (N REF. 21 F 1 4).

However, since then, a new Compliance procedure (N REF. 21 C 0) has also been implemented, called TECHPUMP'S CHILDREN AND ADOLESCENTS PROTECTION POLICY, which was submitted as DOCUMENT NUMBER. There is no doubt about the intention of TECHPUMP SOLUTIONS S.L., which places it at an absolute priority level.

FOURTH. DISPROPORTION IN RELATION TO THE FILES INITIATED BY THE AEPD REGARDING OTHER COMPETING COMPANIES IN ADULT CONTENT.

Finally, we must indicate, as a continuation of everything already stated in the previous allegations, as well as in those previously submitted in the sanctioning administrative files against my represented party, and all the changes that have been made within this more than demonstrable willingness to collaborate, which is perceived on their part, it brings with it a more than evident disproportion regarding the treatment that these competing companies are receiving from the Spanish Agency for Data Protection, whose websites are receiving much more traffic even than those of TECHPUMP SOLUTIONS S.L.

These websites have never had their access restricted to traffic in Spain, which could be done if it is such a concern, and they have far fewer guarantees than those of TECHPUMP SOLUTIONS S.L., while at the same time, they present circumstances that may put the processing of their data concerning minors and/or third parties at risk, not to mention that, in many cases, they are lacking any type of guarantee. In this regard, see the comparables that are...

C/ Jorge Juan, 6

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accompanying in the documentary as an example, and to avoid entering into true absurdities that are freely accessible without any restriction of any kind from Spain.

And not only that, but the website generated by my client TECHPUMP SOLUTIONS S.L. in 2023

***URL.7 is a benchmark in terms of educating parents, mothers, and guardians on safe navigation, when even in educational institutions dependent on the State and the Autonomous Communities there have been complaints about very inappropriate and premature educational practices for minors regarding sexual education. Furthermore, it has even been encouraged for minors to view pornography as well as engage in inappropriate sexual practices for minors, which is far removed from all the efforts being made by TECHPUMP SOLUTIONS S.L. and in this case, it is the administration itself that tolerates them. With all this experience, TECHPUMP SOLUTIONS S.L. has approached the AEPD to try to contribute to the development of appropriate policies that involve education, given the technological evolution and the knowledge that minors possess, which makes controls ineffective, in addition to the clash of rights between the freedom of adults to access and the restriction for minors. We regret that this attempt to approach the AEPD by TECHPUMP SOLUTIONS receives as a response a new initiation of sanctioning proceedings that we understand to be disproportionate and out of place for all the reasons indicated, and that moreover, in the case at hand, the measures have already been implemented.

In any case, my client doubts that other similar websites have shown a willingness to collaborate as evident as that being carried out by them, with the intensity, seriousness, and commitment in defense of the same values that the Spanish Agency for Data Protection seeks to defend.

D). ALLEGATIONS ON THE SET OF FILES INITIATED AGAINST MY CLIENT, INCLUDING THOSE CORRESPONDING TO PS 524/2023

In conjunction with all the files initiated by the SPANISH AGENCY FOR DATA PROTECTION concerning my client, the following clarifying allegations are made.

FIRST. In the case at hand, as can be inferred from the set of allegations made by my client in the FILES PS 00555/2021, PS00523/2023, PS524/2023, there is certainly evidence of non-compliance carried out by my client, which is recognized as such, as it is also evident that they have deployed all activity aimed at efficiently and effectively correcting these anomalies, practically eliminating the deficiencies evidenced by the SPANISH AGENCY FOR DATA PROTECTION.

This mitigating circumstance developed by my client is nothing more than a reflection that, on their part, there has never been any doubt about the necessity to protect the privacy of individuals who approach this type of website, and at the same time, with a fundamental character, to protect the rights of minors to ensure that they do not have any access to such websites.

The public communication made by my client has aimed to convey to the general public the necessity and to effectively raise awareness about the need to establish appropriate protective measures that guarantee that such minors did not have and could not have access to the aforementioned websites, having achieved this purpose.

In this regard, it should be emphasized in detail the significant investments made by my client in order to convey in a holistic and global manner to everyone the necessity of raising awareness about the necessary protection of minors. This has been achieved through the creation of specific websites, as indicated in the allegations included in this document, for the training and awareness of parents, so that they can exercise due control over their minor children and these websites.

Similarly, it should be noted that my client has developed systems, in collaboration with internet service providers, to try to prevent unauthorized access by such minors to the indicated websites.

This effort of awareness and mitigation of the hypothetical harm that these websites could cause has

also been attempted to be mitigated, not only by actively correcting and addressing all irregularities highlighted in their actions by the SPANISH AGENCY FOR DATA PROTECTION, but my client's position has gone further, in the sense of offering, given the experience acquired, their legal and sincere collaboration both to the governmental plans carried out by the GOVERNMENT OF SPAIN and by the SPANISH AGENCY FOR DATA PROTECTION, with the purpose of collaborating in the legal and technological regulation of the sector, so that this type of website ceases to be a factor of conflict concerning minors.

Additionally, it cannot be overlooked that my client TECHPUMP SOLUTIONS S.L., in proof of their conviction to mitigate this type of risks, has taken the lead in the sector of this type of websites, both at the national and international level, developing effective and convincing technical means to protect and preserve the legitimate rights of minors concerning this type of websites.

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28001 – Madrid

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13/31

These circumstances are sufficiently and primarily evidenced in the allegations made concerning File PS00555/2021, and are also verifiable in relation to PS523/2023 and PS524/2023.

SECOND: By this representation, the explicit request is made for the accumulation of the procedures PS00555/2021, PS523/2023, and PS524/2023, as they deal with identical issues, and in any case, analogous to the technical conditions that these websites must meet, for the purpose of complying with the privacy requirements mandated by current legislation.

The accumulation in the administrative sphere is configured as a procedural act adopted as an incident within a main procedure by the body that has initiated or processed it, for the purpose of accumulating it with others that have substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure. We will analyze its legal configuration below.

In general terms, Article 57 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading of Accumulation, states that "the administrative body that initiates or processes a procedure, regardless of the form of its initiation, may, ex officio or at the request of a party, order its accumulation to others with which it has substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure," and that "no appeal shall proceed against the agreement of accumulation."

This accumulation of files is based in the present case on the substantial identity that exists among the various files initiated against my represented party to which specific reference has been made, having an intimate connection among them, as has been previously stated. This decision is adopted regarding a procedure that forms an administrative file. An administrative procedure must be understood as the succession of actions carried out by the Administration subject to the general rules of initiation and processing provided in Title VI of the aforementioned LPACAP, which conclude through one of the forms provided in Chapter V of the mentioned Title. The procedures are documented in the files.

The accumulation can be agreed upon at the time of initiating the procedure or can be agreed upon concerning already initiated procedures, and it can be done ex officio or at the request of a party.

Article 57 LPACAP establishes the requirement that the body deciding on the accumulation must be the same that must process and resolve the procedure. In this sense, the jurisprudence has already understood that the decision to accumulate is discretionary and that the body ordering the accumulation must have the competence to decide on the matters referred to in the accumulated procedures, referring to this effect as "body with more specific competence" (cf. ruling of the Supreme Court of December 26, 1989).

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14/31

Regarding the content of the decision itself, as stated, the jurisprudence understands it to be a discretionary decision; however, it cannot be forgotten that Article 57 of the LPACAP requires that there must be a logical "intimate connection" or "substantial identity" among the procedures that are accumulated, these being indeterminate legal concepts that must be integrated by the authority deciding to accumulate, which makes it possible for the decision to be challenged not in isolation, as has been seen, but with respect to the resolution that concludes the procedure; in this sense, the idea of discretion must be nuanced and not identified with the unappealability of the decision to accumulate. Furthermore, it is not necessary to hear from the interested parties, which is why the jurisprudence understands that there is no defect of defenselessness.

As can be deduced from the above, the effect produced by the accumulation is to resolve in a single procedure and in a single resolution all the issues raised, which is basically what is requested in this document.

THIRD. This representation, as deduced from the allegations and the documentary evidence provided in sections A), B), and C) of this written statement of allegations, demonstrates before the SPANISH AGENCY FOR DATA PROTECTION the appropriateness of considering the mitigating factors of the administrative responsibility to be imposed on my represented party.

This should begin with the aforementioned accumulation of sanctioning files, in order to avoid reiterating the same sanction for the same facts, or for facts that are a consequence of the previous ones.

Subsequently, this representation highlights the need to weigh the circumstances expressly provided for in number 2 of Article 83 of Regulation 2016/679 General Data Protection Regulation of the EU, for the purpose of adequately quantifying the fines that may be imposed as a result of alleged administrative infringements.

In this regard, it is necessary to bring to attention the intentionality or negligence in the infringement, where it must be noted that the situation for which my represented party was sanctioned or proposed for sanction was the common one existing in the market, both from a national and international perspective, where it should be emphasized, as has been demonstrated, the level of reaction of my represented party in implementing truly effective mitigating measures, as has effectively occurred, guaranteeing the rights and freedoms of the data subjects involved, and preventing minors from accessing such websites.

Regarding Article 83.2.c., any measures taken by the data controller or processor to mitigate the damages and losses suffered by the interested parties must be taken into account.

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

15/31

In this case, the set of measures referred to in this statement of allegations represents the real and effective adoption of said measures, to mitigate the damages and losses that may occur as a result, with the aim of ensuring that these are nonexistent as long as the controls carried out voluntarily by my represented party function properly.

It is important to highlight at the same time the capacity of my represented party to react to mitigate or prevent the occurrence of injuries to the rights of users, proceeding to actively and immediately correct the irregularities that have been detected in this regard.

Likewise, the degree of cooperation of my represented party with the supervisory authority must be emphasized in order to remedy the infringement and mitigate the possible adverse effects of the infringement, as evidenced by the measures adopted as documented in the various statements of allegations included in this document.

Furthermore, it is important to highlight, as has been done, the position that my represented party has assumed, which has not hesitated publicly through various media to unequivocally adopt the governmental positions and/or those of the Spanish Data Protection Agency, seeking to raise awareness and educate users to respect, in the first instance, their rights and freedoms in the realm of privacy, but also to reinforce educational measures, and the consequent control that these entail, in

order to guarantee at all times the rights of minors, as the main concern of my represented party, as has been publicly stated. This positioning and attitude should be valued as a significant mitigating factor against any other aggravating or mitigating factors applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

The explicit implementation of a website aimed at parents, with the investment that this has entailed, should be interpreted as a demonstration of institutional loyalty on the part of my represented party, just as the fact of having implemented means that have resulted in a more than evident reduction of its income, in order to guarantee the rights of users and, above all, taking into account the technical and organizational measures aimed at preserving minors' access.

Consequently, it should be noted the implementation of significant economic means by my represented party in order to align with the same position indicated, in this case, by the SPANISH DATA PROTECTION AGENCY. Thus, TECHPUMP SOLUTIONS, S.L. currently not only has these adult websites against which these recurring sanctioning proceedings have been initiated, but also an educational website like no other known, which has already been demonstrated to provide effective assistance to parents and guardians.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/31

which can even be addressed to my client in case technical issues arise.

FOURTH. In light of what has been stated in the previous section, it should be additionally noted, but systematically, the actions undertaken by my client in order to responsibly and fully collaborate with the SPANISH AGENCY FOR DATA PROTECTION regarding certain measures that have guaranteed the rights of data subjects, and especially, as has been pointed out with a certain reiteration, the specific protection of minors.

Among the measures to which special reference should be made, the following stand out for their importance, and are presented as follows:

- 1). The generation of a Compliance procedure in relation to minors. "TECHPUMP'S CHILDREN AND ADOLESCENTS PROTECTION POLICY" has already been submitted to the AEPD, along with the designation of an external Compliance Office.
- 2). The creation, as has been repeatedly referenced in this written submission, of the website www.padresprotegen.com by TECHPUMP SOLUTIONS S.L. so that through it both parents and guardians can manage and limit access and security for minors. A unique initiative by a provider and within realistic standards using education as a basis.
- 3). The carrying out of the appropriate communications with the AEPD with the purpose of collaborating both with the Agency and with other administrations and with the Government of Spain in this area of activity, in order to provide effective and efficient solutions, based on the experience acquired by my client, as a knowledgeable entity in this specific sector of activity, that can help and contribute to this Agency with ideas and data that may be important given the declared urgency of the situation. Furthermore, when TECHPUMP SOLUTIONS S.L. is undoubtedly the one that best complies in the sector and when its market share is minimal in relation to foreign operators in Spain. All of this is thoroughly documented in the submitted writings. This assistance is offered voluntarily and with all generosity to the Agency to which I have the honor of addressing, and its contribution is once again sought, as it may prove to be very constructive.
- 4). The hiring of an external legal team to resolve incidents: Techpump has hired external specialists not to conceal the issues but to confront them with solutions and approaches based on ethics, which has represented a significant change particularly in onboarding processes and education.
- 5). As has also been reiterated, my client has launched various awareness campaigns in the press regarding the website www.padresprotegen.org and the willingness to collaborate with the AEPD and with the Government of Spain. With this, TECHPUMP SOLUTIONS S.L. has publicly acknowledged at all times its intention to contribute and ultimately rectify non-compliances.

6). The continuous implementation and review of a more comprehensive onboarding process for open adult pages existing in Spain in the protection of minors and respecting adult access in accordance with data minimization processes and the demanding "balance": Including date of birth, access to educational websites, dark funds up to

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

17/31

the acceptance of cookies, session cookies, among other technical and organizational measures implemented for this purpose. 7). The implementation of a project for migration to paid pages in the coming months without open content and requiring registration. Against foreign competitors and considering the loss of market share this entails. Additionally, Techpump will implement a payment system in the event of non-acceptance of cookies, which implies greater access control as user registration will be necessary. All of this, disregarding the economic cost that the adoption of such technical measures represents for me. 8). The establishment of a contact process with mobile phone operators to restrict access for minor subscribers. In this regard, TECHPUMP SOLUTIONS S.L. is studying the implementation of an age-related access control concerning the holders of mobile devices, restricting access in cases where the holder is a minor. For this purpose, my represented party has sought contact and involvement from the AEPD itself, although management with the operators is already beginning. In this sense, TECHPUMP SOLUTIONS S.L. would also support initiatives that, as far as is known, have not yet been addressed by the AEPD, but which are aimed at prohibiting smartphone devices for minors under 14 years old, as educators already indicate that this is necessary for the protection of minors and due to the issues that early use of these technologies poses for development and relationships with others. TECHPUMP SOLUTIONS S.L. already has internal studies in this regard. 9). The hiring and linking of Compliance with the RTA (Restricted to Adults) <https://www.rtalabel.org/> following the international standards of the Association of Sites Advocating Child Protection (ASACP). As a conclusion to all of this, it should be emphasized that TECHPUMP SOLUTIONS S.L. has demonstrated and continues to demonstrate every day in a palpable and evident manner its absolute commitment to this AEPD and other state bodies, aimed at decisively supporting the public policies and commitments of the Spanish Agency for Data Protection, thereby protecting those measures necessary to guarantee users' rights.

The intention has been to provide protection regardless of any ideological or political approach, but rather in defense of society without neglecting recommendations of any kind aimed at greater protection, particularly of minors. Finally, the fact of this loyal, committed, and sincere collaboration in this area of activity should be valued, far from the image that some third parties have sought to project of certain companies in this field or sector, as operators like TECHPUMP only aim to do things as well as possible within their business and to collaborate in education.

FIFTH. Consequently, through this representation, it is expressly requested that these sanctioning processes be accumulated, in the first instance, and that in any case, the sanctions imposed on my represented party be moderated, based on the compliance activity and intended orthodoxy, which is not only exemplary but constitutes a benchmark for the entire sector of these websites, in the sense of the more than evident and clear willingness to comply with current regulations in

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28001 – Madrid

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18/31

regarding data protection and privacy, ensuring the rights of users and minors. For all the above, I REQUEST FROM THE DATA PROTECTION AGENCY that this document be considered submitted, and that the allegations contained herein be acknowledged. Consequently: a). That the allegation procedure corresponding to case PS524/2023 be deemed completed in a timely and legally appropriate manner. b). That cases PS00555/2021, PS00523/2023, and PS524/2023 be consolidated

due to their close connection, and that they be addressed in a single administrative procedure. c). Given the special circumstances of case PS00555/2021, that it be archived without further proceedings. d). That, in any case, mitigating circumstances regarding liability be applied for the purpose of imposing a fine, in accordance with the circumstances for weighing liability provided for in Article 83 of Regulation (EU) 2016/679, General Data Protection Regulation, to which reference has been made, reducing the monetary fines imposed on my client in the files specifically referenced in this document of allegations.

NINTH: On 04/07/24, the entity submits a new document of allegations in which it states the following: First.- That, as has already been stated before this AEPD, in the event that the onboarding system published in the Press Release is approved, TECHPUMP will adopt it immediately, without prejudice to the measures that have already been implemented, demonstrating that, to date, there has not been an established mandatory onboarding procedure for adult websites, as is evident from the accompanying note from the Ministry.

Second.- That the publication of the aforementioned press release therefore demonstrates that, to date, there was no established onboarding system for adult websites, and thus it is unacceptable for the AEPD to seek to sanction Techpump when it has an onboarding system that is more protective than that of its competitors, and there was no other mandatory system in place.

Third.- That the onboarding system that is intended to be established according to the mentioned press release includes personal data that, in our understanding, constitutes a significant violation of the rights of individuals, in this case, of adults, and results in an onboarding system outside the framework of the GDPR and consequently of the LOPD.

Notwithstanding the above, and in the event of not migrating to "paid" pages when this regulation becomes applicable, it will be applied, despite being considered not in accordance with the law. Regarding the legality of the ministerial proposal, we understand that the AEPD will issue a report before its implementation.

Fourth.- That we reiterate once again that Techpump, in this regard, maintains an absolutely proactive attitude and proposes alternative systems.

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

19/31

more effective and compliant with individuals' privacy, resulting in the Spanish Government's proposal, in our opinion, being disproportionate, violating the principle of data minimization among others."

TENTH: On 05/07/24, the entity submits a new written statement of allegations in which it states the following:

That in relation to the referenced files, new complementary allegations are hereby made to our written statement of allegations dated June 13, 2024, and previous ones. And in light of the publication last Monday of the Press Release "Digital Wallet Beta, the application that includes the age verification system for access to adult content, will be available by the end of summer," published by the MINISTRY FOR DIGITAL TRANSFORMATION AND PUBLIC FUNCTION. This is accompanied as DOCUMENT ONE. The following STATEMENTS are made:

First.- That as already stated before this AEPD, in the event that the onboarding system published in the Press Release is approved, TECHPUMP will adopt it immediately, without prejudice to the measures that have already been implemented, demonstrating that to date there is no established mandatory onboarding procedure for adult sites, as is evident from the Ministry's own note that is attached.

Second.- That the publication of the aforementioned press release therefore demonstrates that to date there was no established onboarding system for adult sites, and thus it is unacceptable for the AEPD to intend to sanction Techpump when it has an onboarding system that is more protective than that of its competitors, and there was no other mandatory system in use.

Third.- That the onboarding system that is intended to be established according to the mentioned press release includes personal data that we believe constitutes a significant violation of individuals'

rights, in this case, of adults, and results in an onboarding system outside the framework of the General Data Protection Regulation and consequently of the LOPD. Notwithstanding the above, and in the event of not migrating to “paid” pages when this regulation becomes applicable, it will be applied, despite being considered not legally compliant. Regarding the legality of the ministerial proposal, we understand that the AEPD will issue a report before its implementation.

Fourth.- That we reiterate once again that Techpump in this regard maintains an absolutely proactive attitude and proposes more effective alternative systems that comply with individuals' privacy, resulting in the Spanish Government's proposal, in our opinion, being disproportionate, violating the principle of data minimization among others.

Therefore, we request the filing of all complaints imposed on my client, as it is clearly evidenced through the content of this document that the system required of my principal did not exist at the time.

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

20/31

time to impose a serious sanction for this, as the possession of a specific and determined system for this purpose is not yet mandatory.

For all the above, I REQUEST THE SPANISH AGENCY FOR DATA PROTECTION to consider this document submitted, to accept it along with the accompanying documentation, to acknowledge the previous statements made, and TO ORDER THE FILING OF ALL COMPLAINTS FILED AGAINST MY REPRESENTED PARTY.

From the actions taken in this procedure and the documentation in the file, the following have been established:

PROVEN FACTS

Single: On 27/12/23, the Inspection Subdirectorate of the Spanish Agency for Data Protection recorded the following characteristics of the “Cookie Policy” of the websites:

***URL.1, ***URL.2, ***URL.3, ***URL.4, and ***URL.5:

a).- Regarding the installation of cookies prior to user consent:

Upon first entering these sites, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on them, the following own cookies were used: -

On the website ***URL.2, an own cookie, “OptanonConsentimiento,” was used, detected as technical or necessary; - On the website ***URL.1, an own cookie “OptanonConsentimiento” was used, detected as technical or necessary, and the own cookies “usuario_país,” “stop_redirect,” “país,” and “redirect_es,” whose purpose could not be identified, although according to the information provided in the “Cookie Policy” of the website, these cookies “are necessary for the website to function...”; - On the website ***URL.4, an own cookie was used: “stop_redirect,” whose purpose could not be identified, although according to the information provided in the “Cookie Policy” of the website, it is a necessary cookie used to redirect the user to their country of origin. It was verified that when attempting to access the websites ***URL.3 and ***URL.5, they redirect the user to the website ***URL.6.

b).- Regarding consent for the installation of cookies on the terminal equipment:

It was confirmed that if the user did not give consent for the websites to use cookies that were not technical or necessary and began browsing any of the mentioned websites, they started to use two third-party cookies: “__uvt” and “__upt,” whose domain belongs to “XXXXXXX.” From these two cookies, it was found that the purpose of the cookie “__uvt” is to perform statistical operations on user preferences, and regarding the cookie “__upt,” its purpose could not be identified.

c).- Regarding the cookie information banner present on the first layer:

The cookie information banner present on the first layer of the websites in question informed that they used own and third-party cookies and informed how the user could accept, configure, or reject the use of cookies. It also indicated that the purposes for which the cookies would be used were “for analytical purposes and to show personalized content based on a profile created from browsing habits (...).”

However, it was verified that of the two third-party cookies installed when starting web browsing (“__uvt” and “__upt”), there was no information about them in the “Cookie Policy” of the websites.

d).- Regarding the possibility of withdrawing consent for the use of cookies once granted.

It was confirmed that if the user had given their consent for the use of cookies that were not technical or necessary through the option available in the initial information banner or through consent granted in the control panel and wished to modify it later, there was indeed the possibility to access the control panel again through the link available in the “Cookie Policy” of the websites.

However, if the user's desire was now to reject all cookies by clicking on the option <> or moving the sliders of the cookie groups to the “OFF” position and clicking on the option <>, it was verified that the websites continued to use the installed third-party cookies (“__utv” and “__utp”).

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

The fourth additional provision “Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws” establishes that: “The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws.”

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

22/31

II

Response to the allegations presented regarding the resolution proposal

First: The entity TECHPUMP begins its written allegations by indicating that, as a consequence of the existence of various sanctioning files related to the current regulations on personal data protection, it groups the allegations pertaining to each of them in this document. Thus, section A), titled “REGARDING PS 55/2021,” is dedicated to defending its interests concerning the file PS/00555/2021, and section B), titled “PROCEDURE PS/523/2023,” is dedicated to the file opened against the entity under that reference.

To contextualize the situation of the three files referred to by TECHPUMP, it should be noted that in PS/00555/2021, the aforementioned entity was charged and sanctioned for violations of the GDPR as well as the LSSI (although, as we will see later, the facts charged in that procedure do not coincide with the facts charged in the present sanctioning procedure; PS/00523/2023 was initiated as a consequence of the non-compliance with the corrective measures imposed in PS/00555/2021, related solely to the violations of the GDPR, and the present sanctioning procedure, PS/00524/2024, only refers to violations of the LSSI, as we have indicated, concerning different and subsequent facts to those established in PS/00555/2021.

Therefore, it should be stated regarding the allegations presented in sections A) and B) of the written allegations that they have no relation to the matter being addressed in the present file (PS/00524/2023) and that, consequently, they cannot be taken into consideration in this procedure, as they will be addressed and resolved, if applicable, within each of those files.

Furthermore, it should be recalled that PS/00555/2021 is currently being adjudicated in a contentious-administrative judicial procedure (CA/00086/2022) before the AUDIENCIA NACIONAL (PO 0001794/2022), and therefore, it will be this Judicial Body that resolves, if applicable, the controversies raised in section A), while PS/00523/2023 follows an independent administrative procedure from this one, and it will be within that procedure, if appropriate, where the allegations

raised in section B) will be adjudicated.

Second: In point "first" of section C) of the written allegations, the entity TECHPUMP raises the application of the principle "NON BIS IN IDEM" to the present case, alleging that the facts being judged in it have the same subjective, factual, and causal identity as those judged in file PS/00555/2021, with no differences existing between the two sanctioning administrative procedures, and therefore, it requests that the present file be archived.

It should be noted that the principle of "non bis in idem," applied to administrative law, is a legal principle that establishes that a person cannot be sanctioned twice for the same act, seeking to protect individuals from being pursued repeatedly for the same facts.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

23/31

However, for the principle of "non bis in idem" to apply, it is necessary that there exists subjective, factual, and causal identity between the two cases. Subjective identity refers to the fact that the accused person in both proceedings is the same. Factual identity refers to the fact that the alleged acts in both proceedings are the same, that is, there must be a coincidence regarding the description of the facts being alleged. Finally, causal identity refers to the fact that the cause of action is the same in both proceedings, meaning there must be a causal relationship between the alleged facts and the legal norm violated. If these three requirements are met, then the principle of "non bis in idem" demanded by the entity could be applied.

However, in the case at hand, although it is evident that subjective identity is fulfilled as the same entity, TECHPUMP SOLUTIONS S.L., is involved in both files, and the same causal identity exists since there is a causal relationship between the alleged facts in the two files and the legal norm violated, Article 22.2 of the LSSI, the same does not occur regarding factual identity since the alleged facts in both proceedings are not identical in their description and relevant circumstances.

If we examine the resolution of file PS/0555/2021, dated 16/09/22, we can see that the entity TECHPUMP was sanctioned, among other issues, for violating Article 22.2 of the LSSI based on the following deficiencies observed in the "Cookie Policy" of its websites (see point XXVII of the FD.- On the "Cookie Policy" of the website):

-

a).- For the installation of cookies on the terminal equipment prior to the user's consent: It was found that upon entering its main pages and without taking any action on them, unnecessary third-party cookies were used without the prior consent of the user: - On the website ***URL.2, the cookies used were: "_ga_RKCN8YSRSF", "_ga", and "_gid" whose provider is Google. On the website ***URL.1, the cookies "User_country" whose provider is Addition Technologies GmbH and the cookies "gat_UA-38248820-52", "_ga", "_gid", "_ga_8WNV1D198Q" whose provider is Google were used. On the website ***URL.3, the cookies: "_ga_JREJ5KRZQT", "_gat_UA-50005236-1", "_ga", and "_gid" whose provider is Google were used. On the website ***URL.4, the cookies "_ga_KJ5V9F3XJJ", "_ga", and "_gid" whose provider is Google were used, and on the website ***URL.5, the cookies "ga_CKL7S7S25E", "_ga", and "_gid" whose provider is Google were used.

-

b.- There was no type of banner on the main page that generically informed about the cookies they used.

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c).- There was no mechanism that allowed rejecting cookies or the possibility of managing them granularly through a control panel, and

-

d).- The information about cookies provided in the "Cookie Policy" was written in English, which is not an official language in Spain.

Meanwhile, in the present file, PS/00524/2023, the following deficiencies are sanctioned in the "Cookie Policies" of its websites:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
24/31

a).- Due to the installation of cookies prior to user consent, it has been detected that upon first entering them, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action regarding them, the following first-party cookies were used: On the website ***URL.2, a first-party cookie, "OptanonConsentimiento," was detected as technical or necessary. On the website ***URL.1, a first-party cookie "OptanonConsentimiento" was detected as technical or necessary, along with the first-party cookies "usuario_país," "stop_redirect," "país," and "redirect_es," whose purpose could not be identified, although according to the information provided in the website's "Cookie Policy," these cookies "are necessary for the website to function...". On the website ***URL.4, a first-party cookie: "stop_redirect" was used, whose purpose could not be identified, although according to the information provided in the website's "Cookie Policy," it is a necessary cookie used to redirect the user to their country of origin.

b).- If the user does not give consent for the websites to use cookies that are not technical or necessary and begins browsing any of them, they start using two third-party cookies: "__uvt" and "__upt," whose domain belongs to ".magsrv.com." From these two cookies, it has been determined that the purpose of the cookie "__uvt" is to perform statistical operations on user preferences to display targeted advertising, but regarding the cookie "__upt," its purpose could not be identified. There is also no information about these cookies in the "Cookie Policy" of the websites and,

c).- There is no possibility of withdrawing consent for the use of cookies once granted. Therefore, it is evident that one of the three identities necessary for the application of the principle "non bis in idem" does not hold in this case, as the facts attributed in both processes are not identical in their description or in their relevant circumstances, and therefore, the request made by the entity TECHPUMP to archive the present file based on the principle of non bis in idem cannot be granted. Third: The entity TECHPUMP states in point "second" of section C) of its allegations that it reproduces the statements made in file PS/00523/2023 (dated 18/12/23), regarding the contentious-administrative prejudiciality, arguing in that document that the facts that have motivated the sanctions established in the administrative sanctioning file PS/00555/2021 are involved in the contentious-administrative appeal 0001794/2022 before the National Court, and therefore, this Agency cannot open a new administrative file for the same facts concerning file PS/00555/2021. Well, it must be reiterated at this point what was stated in the previous section, which is that between file PS/00555/2021 and the present file PS/00524/2023, although there is the same subjective and causal identity, there is not the same identity.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
25/31

factual, that is, the facts attributed in each of the files are not the same and therefore both files are completely independent, so that, although PS/00555/2021 is involved in an administrative contentious proceeding, PS/00524/2023, being different in terms of factual identity, could continue its process. Let us recall that in the file PS/00555/2021, the entity TECHPUMP was sanctioned for the use, on its owned websites, of third-party cookies without the prior consent of the user. These cookies were, on the website ***URL.2: "_ga_RKCN8YSRSF", "_ga", and "_gid" from Google. On the website ***URL.1: "User_country" from Addition Technologies GmbH and the cookies "gat_UA-38248820-52"; "_ga"; "_gid"; "_ga_8WNV1D198Q" from Google. On the website ***URL.3, "_ga_JREJ5KRZQT"; "_gat_UA-50005236-1"; "_ga"; and "_gid" from Google. On the website ***URL.4, the cookies:

“_ga_KJ5V9F3XJJ”; “_ga” and “_gid” from Google and on the website ***URL.5, the cookies: “ga_CKL7S7S25E”; “_ga” and “_gid”, also from Google. It was also sanctioned that there was no type of information banner about cookies on the first layer or main layer of the websites. It was sanctioned that there was no mechanism that allowed rejecting the aforementioned cookies or the possibility of managing them in a granular manner, and it was sanctioned that the information provided in the Cookie Policy was written in English, a non-official language in Spain.

In contrast, the present file, PS/00524/2023, is sanctioned for the use of third-party cookies, (“__uvt” and “__upt”), whose domain belongs to “XXXXXXX”, although the user has not given consent for this. It is sanctioned that there is no possibility to reject the use of these cookies, nor the possibility to modify consent once given.

Therefore, it is evident that the facts that the AN is considering in the administrative contentious appeal 0001794/2022, (PS/0555/2021) are not the same, which is why the present sanctioning procedure has been opened, and therefore, the allegations presented regarding the possible prejudiciality of the administrative contentious facts known in the present procedure PS/00524/2023 cannot be considered at this point.

Fourth: The entity TECHPUMP states in point “three” of section C) of its allegations, referring to file PS/00555/2021, that all the issues indicated regarding the cookie policy, “(...) have been openly resolved and corrected by my represented party, and consequently, therefore, the initiation of a new sanctioning file is not appropriate, without prejudice to the fact that in this new procedure an inspection or the corresponding investigative actions will be carried out...” and that “...this cookie was indeed temporarily placed due to a technical error by the advertising provider Exoclick without being active at the time the external audit was conducted (January 2024), and without being so currently. Therefore, it was merely a temporary error within a technical process...”

Well, at this point, it is only necessary to recall that it is the entity TECHPUMP itself, in the document submitted to this Agency on the past date of 26/03/24, that acknowledges that the cookies “__uvt” and “__upt” are managed by the company ExoClick. That during the

C/ Jorge Juan, 6

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28001 – Madrid

sedeagpd.gob.es

26/31

December 2023, when this Agency evaluated the cookies, there were no measures implemented to block them. It was not until February 2024 that ExoClick presented a solution that allowed for their blocking, but it was only implemented in “XXXXXXX” and “XXXXXXX”, and not in “XXXXXXX”, which is still pending a solution.

Therefore, it is the entity TECHPUMP itself that acknowledges that when this Agency evaluated the websites owned by it in December 2023, they used two third-party cookies (__uvt and __upt); but lacked measures to block them, so it is not possible to take into consideration the allegations presented on this point regarding the entity having resolved the deficiencies detected in the “Cookie Policy” of its websites, as this was not true in December 2023.

Fifth: The entity TECHPUMP states in point “fourth” of section C) of its submission what it considers to be discrimination in relation to the proceedings initiated by the AEPD concerning other competing companies in adult content.

It should be stated that these allegations cannot be accepted or taken into consideration since the purpose of this sanctioning procedure is to identify the deficiencies in the “Cookie Policy” of the websites owned by it, and therefore, it does not address the management carried out by this Agency regarding the control over the processing of personal data by entities engaged in disseminating adult content, existing other areas of the Public Administration where, if the entity wishes, it can raise these issues.

Sixth: In section D).- (points “first” to “fifth”), of the submission of allegations, the entity defends the need to accumulate the procedures PS00555/2021, PS523/2023, and PS00524/2023, as they concern identical issues, according to its assessment.

Well, let us recall that generally, Article 57 of Law 39/2015, of October 1, on the Common

Administrative Procedure of Public Administrations (LPACAP), under the heading "Accumulation" states that: "the administrative body that initiates or processes a procedure, regardless of the manner of its initiation, may, ex officio or at the request of a party, order its accumulation to others with which it has substantial identity or intimate connection, provided that it is the same body that must process and resolve the procedure" and that "no appeal shall proceed against the agreement of accumulation." From the aforementioned Article 57 LPACAP, it follows, and jurisprudence understands it as such, that the decision to accumulate several files is discretionary and that the body ordering the accumulation must have the competence to decide on the matters referred to in the accumulated procedures, requiring that there must be a logical "intimate connection" or "substantial identity" between the accumulated procedures.

In view of the above, and in relation to the files PS/00524/2023 and PS/00523/2023, it is evident that among the facts being analyzed in each of them, the criteria of substantial identity and intimate connection claimed by the entity does not concur, since in the present file, PS/00524/2023 is being...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

27/31

analyzing the possible violations of what is established in the LSSI and, on the other hand, in the file PS/00523/2023, the objective is to determine whether or not there is a violation of the GDPR.

Finally, it should be noted that the file PS/00555/2021 is already final in the administrative route and is currently under judicial review in the Audiencia Nacional under the contentious-administrative appeal PO 0001794/2022, and therefore, the bodies responsible for resolving the controversies raised in the files PS/00555/2021, which will be the Judge of the AN in charge of the case, and PS/00524/2023, which will be the Director of the AEPD, do not coincide.

Therefore, based on the above, it is not possible to accommodate the request for the accumulation of files as proposed by the entity.

Seventh: Among the requests made by the entity, in point d) it requests that the monetary fine imposed be reduced by invoking the circumstances for weighing responsibility provided for in Article 83 of the GDPR.

Well, it should be stated that the present sanctioning procedure was initiated due to the irregularities detected in the "Cookie Policy" of the websites owned by it, thereby violating what is established in Article 22.2 of the LSSI, and it is in the LSSI where the legal regime relating to infringements, for non-compliance with the norm, sanctions, and their weighting is regulated, with Article 40 regulating the grading of infringements.

Let us remember that Article 38.4 g) of the LSSI classifies the facts that give rise to the infringement as "minor," which may be sanctioned with a fine of up to €30,000, in accordance with Article 39 LSSI, and that in order to grade the sanction, the provisions of Article 40 of the LSSI must be taken into account, estimating, in this case, that the existence of intentionality (section a) should be applied as aggravating factors to calculate the sanction to be imposed, an expression that must be interpreted as equivalent to the degree of culpability in accordance with the Judgment of the AN 12/11/07 issued in Appeal 351/2006, and the recidivism for committing infringements of the same nature, when declared by a final resolution (section c), taking into consideration the resolution issued on 16/09/22, file PS/00555/2021.

Furthermore, it should be noted that it is not possible to apply Article 83.2 of the GDPR to weigh the fine imposed under the LSSI, as the GDPR regulates a manifestly different objective, subjective, and territorial scope of application.

Therefore, in consideration of all the above, the entity's request to reduce the imposed sanction cannot be accommodated in this case, given the existence of two aggravating factors that condition the imposition of the maximum possible sanction.

Eighth: Regarding the allegations presented on 04/07/24 and 05/07/24, where reference is made to the press release announcing the approval of the mandatory "onboarding" system for websites dedicated to disseminating adult content, and that the publication of the aforementioned press release

demonstrates that until that date there was no "onboarding" system for this type of website, and therefore it is not acceptable for the AEPD to seek to sanction Techpump when it has a system of

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
28/31

"onboarding," more protective than that of its competitors, requesting the filing of the present case, states the following:

The "onboarding" system referenced by the entity, according to the press release published on July 1, 2024, states verbatim: "The Minister for Digital Transformation and Public Function, José Luis Escrivá, has today presented Digital Wallet Beta, the digital document holder that includes the age verification system for access to adult content, after completing the design phase of the tool with the publication of the technical specifications....", while in the present sanctioning procedure, PS/00524/2023, nothing is being clarified regarding the systems implemented on adult content websites related to age verification for access to the miasma, but rather aspects related to the "Cookie Policy" of the websites, which makes it impossible to address, in this case, the allegations presented regarding this matter.

III

Classification of the committed infringement

From the deficiencies detected regarding the cookie policy on the websites ***URL.2; ***URL.1 and ***URL.4, namely, the use of third-party cookies that are not technical or necessary even though the user has not given their consent; the impossibility of rejecting them or managing them in a granular manner; the lack of information in the "Cookie Policy" about the purpose of these third-party cookies and the impossibility of withdrawing consent once given, constitute a violation of Article 22.2 of the LSSI, as it establishes the following:

"Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data. When technically possible and effective, the recipient's consent to accept data processing may be provided by using the appropriate parameters of the browser or other applications.

The above shall not prevent the possible storage or technical access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent that it is strictly necessary, for the provision of a service of the information society expressly requested by the recipient."

IV.

Graduation of the Sanction

This infringement is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using data storage and retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", which may be

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
29/31

sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the "graduation of the amount of sanctions," taking into account the following criteria:

- a) The existence of intent.
- b) The period during which the infringement has been committed.
- c) Recidivism for committing infringements of the same nature, when declared by a firm resolution.
- d) The nature and amount of the damages caused.

e) The benefits obtained from the infringement.

f) The volume of billing affected by the committed infringement.

g) Adherence to a code of conduct or a self-regulatory advertising system applicable to the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established by Article 40 of the LSSI:

- The existence of intent (section a). This expression must be interpreted as equivalent to the degree of culpability according to the Judgment of the National Court of 12/11/07 in Case No. 351/2006, corresponding to the reported entity the determination of a system for obtaining informed consent that complies with the mandate of the LSSI.

- Recidivism for committing infringements of the same nature, when declared by a firm resolution (section c). In this regard, the resolution issued on 16/09/2022 by the Director of the Spanish Agency for Data Protection, within the framework of the sanctioning file PS/00555/2021, opened against the entity TECHPUMP SOLUTIONS S.L., among other issues, for the deficiencies detected in the "Cookie Policies" of the websites in question, must be taken into consideration.

According to these criteria, it is deemed appropriate to impose, for the infringement of Article 22.2 of the LSSI, regarding the cookie policy implemented on the websites owned by it, a sanction of €30,000 (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.2. A sanction of €30,000 (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.1 and a sanction of €30,000 (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.4.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been proven, the Director of the Spanish Agency for Data Protection,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

30/31

RESOLVES:

FIRST: TO IMPOSE on the entity TECHPUMP SOLUTIONS S.L. (TECHPUMP), CIF: B33950338, holder of the websites: ***URL.1; ***URL.2, ***URL.3, ***URL.4; ***URL.5, the following sanctions for the infringement of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g):

- 30,000 euros (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.2.

- 30,000 euros (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.1.

- 30,000 euros (thirty thousand euros) for the deficiencies detected in the "Cookie Policy" of the website ***URL.4.

SECOND: TO NOTIFY this resolution to the entity TECHPUMP SOLUTIONS S.L. (TECHPUMP).

To warn the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account

No. IBAN: ES00-0000-0000-0000-0000-0000

(BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is

executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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